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Prohibited Wars in the Jewish Tradition

Aviezer Ravitzky

MICHAEL WALZER'S CHAPTER presents a comprehensive picture of the status of war, its limitations, and its manner of conduct, as reflected in central trends of the Jewish tradition. The chapter clearly explains the implications of the unique situation that has generated most of the relevant rabbinic literature—namely, a situation of exile (*galut*), in the absence of a sovereign Jewish state, in which Jewish communities had no political or military impact on international society. But Walzer's discussion also reveals possibilities immanent in the classical religious sources—even if what these sources have to say on the subject is partial and fragmented—for developing a contemporary Jewish ethic of war.

The sources in question, however, are in the nature of things quite diverse. They have been composed by representatives of many schools, both of *halakhah* and of Jewish thought, spanning the centuries from ancient times to the modern period and the contemporary State of Israel. Any generalization regarding these sources would therefore be open to criticism and unable to encompass all the manifold alternatives developed over the generations. This is all the more true when one is dealing with so crucial an issue as that posed in Walzer's discussion: just and unjust wars.

TYPES OF PROHIBITED WARS

According to Walzer, Jewish religious tradition has not developed a concept of prohibited war. It distinguishes, indeed, between an "obligatory war" and an "optional war," imposing many restrictions upon the latter, but "it has only two categories [of war] where three seem necessary. . . . The missing third category is the banned or forbidden war." True, Walzer points out, Samuel David Luzzatto in the eighteenth century proposed such a view, but he did not have "many followers within the *halakhic* community." Walzer concludes by suggesting the need to formulate a clear halakhic distinction between permitted and prohibited wars, between legitimate and illegitimate warfare.

It seems to me, however, that one may point to several conceptions of forbidden war that have already been developed within the traditional halakhic community. Most of these were explicitly formulated only in recent generations, but all are based upon earlier Jewish sources and accept the religious authority of these sources.

Against What Kind of an Enemy May One Wage War?

According to one important halakhic approach, the permission to attack in war can only be applied against those nations which transgress the “seven Noahide commandments”—those minimal religious-ethical demands that make man human (according to Jewish religion). Civilized peoples, whose members refrain from bloodshed, incest, idolatry, robbery, and the like, are *ab initio* protected from any attack by a Jewish army.

Maimonides ruled: “One does not wage war against any human being, whether in an optional war or an obligatory war, until one calls for peace.”¹ True, Maimonides’ concept of “making peace” with an enemy includes political subjugation² as well as accepting the seven Noahide commandments. But what is the rule in the case of those nations which have long lived according to the universal religious-ethical code, and have not accepted it only from fear of war? “According to Maimonides . . . one is not allowed to make war against those who had previously fulfilled the seven commandments.”³ Thus states the “Hazon Ish” (Rabbi Avraham Yeshayahu Karelitz), the leading rabbinic figure of ultra-orthodox Jewry in prestate Palestine. Note that the traditional Jewish view conceives idolatry as directly connected with general ethical corruption. Maimonides excluded Muslims from the rubric of idolaters, and the thirteenth-century rabbi Menahem Hameiri likewise excluded Christians from this category.⁴ Against whom then, according to the present view, would a Jewish army be allowed to wage an aggressive, discretionary war?

Furthermore, Rabbi Avraham Isaac Kook, the first chief rabbi of Palestine (d. 1935), believed that, already in ancient times, when the Sanhedrin was called upon to decide whether or not to allow the king to launch an optional war, a decisive criterion was the degree of ethical corruption of the potential enemy: “The matter was given over to the Court to examine the moral condition of those idolaters” against whom the king sought to declare war, “since not all [idolatrous] phenomena are alike.”⁵ That is to say, according to the former restriction (that of the Hazon Ish), a war against a civilized nation is forbidden *a priori*; whereas according to the latter restriction, that of Rabbi Kook, even a war against a pagan nation that is not utterly decadent, though not categorically prohibited, will also be ruled out by the Sanhedrin.

For What Ends Is It Permitted to Wage War?

Needless to say, Jewish law permits defensive wars, that is, wars “to deliver Israel from an enemy that attacks them.”⁶ Maimonides describes this kind of war as an obligatory one that does not need the approval of the Sanhedrin; all are called to participate in it, “even the bridegroom from his chamber and the bride from her canopy.”⁷ The same holds true regarding the biblical wars against the Canaanite and Amalekite peoples. But what of a war in order to conquer the Land of Israel in the present historical time? And what of a war of expansion intended “to augment the greatness and reputation” of a Jewish king? Can one point to halakhic writings that have developed a prohibited norm regarding such wars as well?

Nahmanides (writing in the thirteenth century) was the first to establish the commandment of conquering the Land of Israel as a formal, independent commandment, binding subsequent generations.⁸ But what is the nature of this obligation of “conquest”? Nahmanides presents it as a permanent commandment, applicable to every Jew even during the time of exile. Did he mean to demand of his contemporaries that they declare private holy wars against the rulers of the land? Did any of the many sages who endorsed this approach over the generations approve such an option? In point of fact, halakhic language has always recognized a concept of “conquest” carried out, not by military means, but by collective settlement. Some authorities, among them Rabbi Shaul Yisraeli, a scholar of the highest authority among contemporary religious Zionists, have therefore claimed that in this case, too, one is not speaking of “a commandment of conquest through war, but of settling and inheriting the land.” The commandment of military conquest was “of a singular nature. It referred to the time of Joshua only, where the master of the prophets [Moses] [had] himself expressed an explicit command.” But no such command is applicable after that time.⁹

The question arises whether, if one is not in fact *commanded* to conquer the land in war, one is *permitted* to do so. Rabbi Nahum Rabinowitz, head of the Maaleh Adumim Yeshiva, is a leading spokesman for the prohibitory position. According to his interpretation of the tradition, there is no legitimate “conquest” of the Land of Israel save by “permitted means, and warfare *is not permitted to us* unless enemies threaten to attack or do attack” (that is, unless it is a case of either a preventive or a defensive war). Indeed, Rabinowitz infers from Nahmanides’ text that even the biblical command to Joshua to conquer the Land of Israel by war reflected a deficient state of affairs, a temporary fate that befell the people of Israel as a punishment for their sins. One does not find in Nahmanides’ writings, however,

any basis for concluding that war is permitted [in the present era] for the sake of conquest of the Land. What is worse, such a reading entails indifference towards bloodshed. Such indifference undermines the very foundations of society and endangers the entire enterprise of the beginning of our redemption.¹⁰

Of course, not everyone will accept this interpretation of Nahmanides' teaching, even though it is based upon a careful analysis of the source.¹¹ In any event, this reading of Nahmanides reveals an additional possible aspect of the idea of prohibited war in Jewish tradition. As mentioned, the biblical command to wage war against the inhabitants of the Land is conceived here as being a consequence of sin. Similarly, Rav Kook in his day saw these biblical wars as a result of sin. Were it not for that,

the nations who dwell in the land would have reconciled with Israel. . . . No war would have needed to have been conducted, and the [spiritual] influence of Israel would have emanated peacefully, as in the future Days of Messiah. . . . It was sin which caused [the realization of] this hope to be postponed for thousands of years.¹²

Already in the fourteenth century, Gersonides had argued that in the last days the people of Israel will inherit their land "in a manner that will not involve warfare."¹³

But what of the permitted wars of the kings of Israel? Did not Maimonides, as Walzer writes, permit an aggressive war of expansion by the king (at the advice of the Sanhedrin) only in order to augment the king's "greatness and reputation"? Not necessarily. "An optional war is not, God forbid, one which may be initiated arbitrarily or on the basis of purely pragmatic reasons," says Rabbi Aharon Lichtenstein, head of the yeshiva in Alon Shevut. "Launching an optional war requires deliberation, . . . ethical no less than political. . . . The decision should be guided by value considerations also, which even if not rooted in explicit *halakhot*, are obligatory as the law of conscience." The royal goal of the war may be political, but "the justification for the war" confronting the Sanhedrin cannot ignore the "ethical plane" (as we already found above in the remarks of Rav Kook).¹⁴ As Yaakov Blidstein has remarked, the demand for an ethical justification of the optional war corresponds to the positive connotation of the term "optional" in Geonic literature.¹⁵

Moreover, Maimonides negates *ab initio* any secular activity on the part of a king—*any* king—that is not ultimately directed toward the religious and ethical perfection of the world ("to uplift the true religion, to fill the world with righteousness, to break the arm of the wicked, and to wage the battle of the Lord").¹⁶ Here, according to many readings, an opening existed to introduce the demand for value considerations on the part of the king himself, considerations that restrict and overrule his practical goals.¹⁷

*Is It Permissible to Conduct a War That Causes the Enemy
Indefinite Losses?*

According to one halakhic tradition, one may not conduct an aggressive war in which one anticipates killing more than one-sixth of the enemy. The Babylonian Talmud states: "A kingdom that killed one in six is not punished."¹⁸ Who are these casualties? According to the interpretation offered by R. Samuel Edels (Maharsha) in the seventeenth century, this refers to enemy casualties during an optional war!¹⁹ In other words, if the casualties among the enemy reach the ratio of "one out of six," the Jewish king "is not punished"—but if the war causes the death of more, he *is* punished. It is superfluous to note that such a proscription against warfare causing large-scale death is particularly significant in light of the modern development of weapons of mass destruction. In the words of R. Moses Sofer (the Hatam Sofer), writing in the nineteenth century, "The king does not have the right to destroy an entire human genus."²⁰ Rabbi Yehudah Gershuni, a distinguished contemporary halakhic scholar, interprets this prohibition as applying not only to discretionary or "permitted" wars, but even to wars of self-defense. The prohibition is inapplicable only with regard to the biblical holy war launched against Amalek and the Canaanite nations.²¹

PROHIBITED WAR IN CONTEMPORARY RABBINIC DISCUSSION

The new Israeli reality brought in its wake a radical reinterpretation of the question of the limitations on wars. According to this new approach, the point of departure of the halakhah is that war as such is forbidden in principle: "For in every war there are two apprehensions: that one will be killed and that one will kill. . . . Both are related to violations of Torah."²² Consequently, a special religious sanction (*heter*) is required in order to conduct any war, and in present times such concrete permission cannot be warranted save in the case of a clearly defensive war. From this point of view, we may find an interesting answer to the question of why Jewish tradition has developed only two categories (that is, optional and obligatory war) when a third category (prohibited war) seems necessary. The prohibition is the starting point for any specific discussion; it is the given norm, and only against this general background was it possible to develop two particular concepts of commanded and permitted war.

"There are *three kinds of war*," writes Rabbi Yehudah Shaviv:

prohibited war, optional war, and obligatory war. The *halakhah* details the latter two cases only. It does not need to speak about the first, as any war which does not belong to the latter two is by definition prohibited: such a war involves

the prohibition of bloodshed. For if an individual is prohibited by the Torah to spill the blood of another individual, how much more so for a people to spill the blood of another people!²³

Other rabbis have also made explicit statements about this question. For example: "Apart from the obligatory war, commanded to Moses by the Almighty, and the [optional] war conducted according to the counsel of the Great Sanhedrin, any war is prohibited!"²⁴ These authoritative figures, like those mentioned above, are therefore likely to provide a direct answer to Walzer's question: "But who, at this late date, could issue the prohibitions [against 'prohibited war' . . . since God] is not known to have announced any specific (or general) prohibitions?"

Moreover, Rabbi Shaul Yisraeli makes the claim that the very halakhic force of the concept of permitted war is drawn from the conventions of war accepted among the nations.

War is one of the means of solving disputes between one people and another. Only in our generations do they exert effort that war should be recognized as unlawful, but the generation is not yet ready and the nations are not prepared to enter into a mutual agreement of this sort.²⁵

This is indeed a problematic approach, for if one assumes that warfare would be prohibited were it not for the existence of an international consensus, how can a general agreement make it permitted? Does a universal consensus to violate a religious or ethical prohibition (such as bloodshed) cancel the prohibition? One could support this argument, however, by the principle of self-defense. That is, it is not the consensus itself that renders warfare permissible, but its destructive consequences, the universal violence and aggression expressed by or stemming from it. As Rabbi Kook writes: "Regarding the question of war: at a time when all of their neighbors were literally desert wolves, it was utterly impossible for Israel alone to refrain from fighting; for then their enemies would gather together and Heaven forbid destroy all of our remnant."²⁶ In any event, may one not conclude that, should international conventions and behavior alter, the halakhic permissibility of engaging in voluntary wars will likewise change, without any need for new religious legislation?

DIVINE AUTHORITY AND HUMAN RESPONSE

Professor Walzer has drawn our attention to the problems involved in the need to obey an immoral divine command. He mentions the talmudic story about King Saul, who refused to carry out the command to destroy Amalek: "If the adults have sinned, what is the sin of the children?"²⁷ was Saul's question. As we know, the divine reply was, "Do not be excessively

good.” The human ethical protest receives no legitimization. But other midrashic sayings have exploited the Scriptures precisely to defend the status of an ethical opposition to war, conferring full legitimization upon that opposition. I will cite two such examples.

Midrash Tanbuma (Zav, ch. 3) states:

You find that the Holy One, blessed be He, negated His edict for the sake of peace. When? At the moment that the Holy One said to Moses: “When thou besieged a city a long time” [Deut. 20:19], the Holy One told him to destroy them. . . . But Moses did not do so, but said, “Shall I now go and smite he that has sinned and he that has not sinned? Rather, I shall come to them in peace.” . . . [Only] when the enemy did not come in peace, he beat them. The Holy One blessed be He said: “I said, ‘You shall utterly destroy them’ [Deut. 20:17], and you [at first] did not do so. By your life, as you said, so shall I, as is said: ‘When thou comest nigh unto a city to make war against it, then proclaim peace unto it’” [Deut. 20:10].

That is to say, Moses, like Saul, lodged a moral protest against the command to smite innocent people. This time, however, the human protest not only received divine recognition, but was eventually given constitutional, legislative status, regulating the halakhah for future generations. From now on, “When thou comest nigh unto a city to make war against it, then proclaim peace unto it.”

A similar response is related of another ideal figure, that of the messiah (*Midrash Tehillim*, 120):

“I am for peace, but when I speak they are for war” [Ps. 120:7]. What is the meaning of “I am for peace”? Thus said the Holy One blessed be He to the Messiah: “Smash them with a rod of iron” [Ps. 2:9]. He said to Him: “Master of the Universe, no! Rather, I shall begin to speak to the nations with peace.” Therefore it is said: “I am for peace, etc.”

In these texts, the human conscience is granted an autonomous status vis-à-vis the divine imperative. Perhaps this is the difference between Moses and the messiah, on the one hand, and Saul, on the other: because God could not have answered the former, “Do not be overly wicked” (as in the talmudic story attributed to the latter), He could not have pushed them away with the ironical answer, “Do not be overly righteous.”²⁸

In any event, the tradition allows room for human ethical response even regarding obligatory war. It therefore should not be surprising that in the course of time, Rabbi Yitshak Aramah, a fifteenth-century Spanish sage, would come to argue that the commandment given by the Torah to proclaim peace does not simply refer to a formal call for the surrender of the enemy. Rather, it requires

entreaties and supplications offered in the most conciliatory possible way, in order to turn their hearts . . . *for this follows necessarily from the human wisdom of peace, and the Divine will consent.* . . . For if we find that He commanded “You shall not destroy its tree [that is, that found in the city of the enemy], to lift against it an axe” [Deut. 20:19], all the more so should we take care not to commit damage and destruction to human beings.²⁹

God invited, so to speak, the human initiative against warfare, and it is this initiative that underlies the primal notion of the “prohibited war” in halakhah—that is, any war in which one does not initially call for peace.

SPIRITUALIZATION OF WAR AND PEACE IN THE JEWISH AND CHRISTIAN TRADITIONS

Because of the historical situation of the Jews in their exile, Jewish sources tended to concentrate more on historical, theological, and anthropological reflections about war than on ethical guidelines for wartime. Jews speculated about the reasons leading mankind to take up the sword and asked whether war represents given human nature or a decline in that nature, but they were less concerned with the immediate political and practical questions concerning warfare.

Nevertheless, did Jews, rabbis included, really have no experience of warfare throughout the period of exile, as Walzer suggests? In the nature of things, such a generalization also has several interesting exceptions. For instance, many Jews in Spain were active in assisting the Muslim conquerors and later served as a home guard. In later generations as well, some of them were in the habit of bearing arms, to be involved in wars and to protect their cities. The best-known example is that of Rabbi Samuel ha-Naggid, the commander of the army of the kingdom of Granada, a warrior and officer whose military experience is preserved in poetry. Some Ashkenazic sages likewise report the battles fought by persecuted Jews against the Crusaders. Rabbi Solomon b. Samson depicted in a colorful way the army of the community of Mayence, who “wore armor and girded their weapons, from old to young,”³⁰ and rose up against their enemies. Rabbi Eleazar ha-Rokeah told of “an occasion when many great armies laid siege to the city of Worms on the Sabbath, and we permitted all the Jews to take up their weapons.”³¹ He portrays the heroes of Israel as feudal lords girding iron weapons. Even if we may doubt the accuracy of some of these claims, weight must be given to the self-consciousness and self-image regarding the fighting Jew.

Hence, among both Sephardic and Ashkenazic medieval sages, one occasionally encounters admiration of the Hasmonean rulers and their military accomplishments; Rabbi Abraham ibn Ezra, for example, writes

of “the king Judah son of the Hasmoneans who was a warrior, whose hand was strong against the Hellenists, [even though] at the beginning he had neither wealth nor horses.”³² Rabbi Abraham ibn Daoud³³ in Spain and Rabbi Eliezer of Beaugency³⁴ in Franco-Germany express similar sentiments.³⁵

These were the exceptions, however. Throughout the course of Jewish history, the wars of the Gentiles belonged to concrete historical reality, and that reality was the Jews’ involuntary lot. The wars of Israel, in contrast, were a matter more for theology than for politics. They took place in scripture, either in the distant past or in the messianic era, in the distant future. The Jew waged concrete war against the evil inclination more than he did against any historical foe. Peace, too, was discussed primarily from a utopian perspective, in light of the biblical vision of the End of Days, and it, too, belonged mainly to the theological realm.

Thus, the course of history set the Jewish scholars an exegetical challenge that was the opposite of that faced by their Christian counterparts.³⁶ In the postbiblical Jewish sources, we find a distinct trend toward spiritualizing scriptural passages dealing with war, might, and the sword. The “sword and bow” mentioned in the Bible (Gen. 48:22; Ps. 44:7) are in fact “prayer and beseeching.”³⁷ The “soldier and warrior” and “those who repel attacks at the gate” in the Book of Isaiah (3:2; 28:6) are not warriors in the literal sense, but “those who know how to dispute in the battle of the Torah.”³⁸ The sword of the mighty is the Torah.³⁹ The generals of the Bible were transformed into scholars and heads of the Sanhedrin,⁴⁰ and even “David’s warriors” (2 Sam. 23:8) were none other than manifestations of the might of his spirit “as he took part in the session [of scholars].”⁴¹ This tendency to spiritualize scriptural verses dealing with might and war is prevalent throughout the aggadic (as opposed to the halakhic)⁴² homiletical literature, and reappears in new and different guises in the philosophical and mystical literature of the Middle Ages: these verses are interpreted in the former as referring to the struggle between different faculties of the soul,⁴³ and in the latter as referring to divine attributes.⁴⁴

There is a most illuminating converse parallel to the tendency we have described in the Christian exegesis of New Testament passages. Christianity started with a pacifist message. This message was expressed in several passages in the New Testament, particularly in the Sermon on the Mount, and it was as pacifists that the early Christians were depicted in their own time.⁴⁵ Later on, however, when Christianity had become the religion of the Roman empire, it developed the doctrine of the “just war.” Augustine, the chief spokesman for this doctrine,⁴⁶ buttressed his arguments by citing sayings of the prophets in their literal, original senses; the pacifist verses in the New Testament, however, had to be given a new, nonliteral interpretation. Here, too, this was done by way of spiritualization—not, however, of

texts that called to battle, but of those that rang with pacifism. The latter were interpreted as referring to man's inner state, to the depths of his spirit, and not to concrete historical reality.⁴⁷ Such was the way of a faith that had recently entered the political arena and become a power, in contrast to that of a faith long absent from that same arena.

A third stage in the Christian theory of war developed in the Middle Ages—that of the holy war, as manifested in the Crusades.⁴⁸ This, too, has a partial converse parallel in the development of Jewish tradition. The Jewish collective memory indeed recalls the biblical commandment to wage a holy war against the seven Canaanite peoples. The rabbinic sources had, however, neutralized this commandment with respect to the present and future day.⁴⁹ (Note also the story regarding the messages of peace sent by Joshua to the land's inhabitants.) Therefore, according to Maimonides, the notion of an obligatory war can refer today only to war waged to “deliver Israel from an enemy that attacks them”; this may be compared with the Christian concept of the “just war,” but not with that of the “holy war.”

The Zionist revolution has restored the Jewish people to the international arena and granted it political and military power. It has also fused national and religious motivations. Jewish religion has been called upon to demonstrate whether the process undergone by other cultures under these conditions has been an inevitable, deterministic one. That is, it remains to be seen whether the balance will now move from “just war” to “holy war” or, conversely, toward a sharper distinction between a just war of defense and prohibited war.

NOTES

1. Maimonides, *Mishneh Torah*, *Hilkhot Melakhim* 6.1.
2. Cf. Shlomo Goren, *Meshiv Milhamah* (Jerusalem, 1986), 3: 259.
3. Yeshayahu Karelitz, *Hazon Ish: Be'urim ve-Hiddushim 'al ha-Rambam*. Printed in Maimonides, *Mishneh Torah* (Jerusalem, 1957), *Melakhim* 5.1.
4. Expressions of this approach already appear among the Tosaphists. See Jacob Katz, *Halakhah ve-Qabbalah* (Jerusalem, 1986), 291–310.
5. Rav A. I. Kook, *Iggerot ha-Re'ayah* (Jerusalem, 1966), 1: 140. Cf. Yehudah Amital, “The Wars of Israel According to Maimonides” [Heb.], *Tehumin* 5 (1987), 461.
6. Maimonides, *Mishneh Torah*, *Melakhim* 5.1.
7. Mishnah, Sotah 8:7; Maimonides, *Mishneh Torah* 7:4.
8. Ramban, *Hasagot 'al Sefer ha-Mizvot la-Rambam* (printed in Maimonides' *Sefer ha-Mizvot*), *Mitzvot 'aseh she-bishmit ha-Rambam*, no. 3. For a detailed discussion, see Shaul Yisraeli, *Erez Hemdah* (Jerusalem, 1957), nos. 1–2; M. Z. Nehorai, “The Land of Israel in the Teachings of Maimonides and Nahmanides” [Heb.], in M. Halamish, ed., *Erez Yisrael be-Hagut ha-Yehudit bimei ha-beinayim* (Jerusalem,

1991), 129–36; Aviezer Ravitzky, *‘Al Da‘at ba-Maqom: Mehqarim be-Toldot be-Hagut ba-Yehudit* (Jerusalem, 1991), 42–46.

9. Shaul Yisraeli, “In Answer to a Query,” in *Af Sha‘al: Mizvah min ha-Torah?* (Jerusalem, 1978), 4; also Yisraeli, *Erez Hemdab*, no. 1. Rabbi J. J. Reines, the founder of the Religious Zionist movement, likewise advocated a stand unequivocally opposed to the conquest of the Land of Israel by warfare. However, his position was based upon the oath taken by the people of Israel (according to the Talmud and Midrash) that they would not rebel against the gentile nations during their period of exile! *Or Hadasb ‘al Zion* (Vilna, 1902), 18; also Rabbi Samuel Mohliver, *Sefer Shivat Zion* (Warsaw, 1900), 1: 9. This approach is deeply rooted within Jewish literature. It depends, however, not upon ethical but upon theological considerations, which go beyond the scope of our present discussion. Cf. Bahya ben Asher, *Perush ‘al ha-Torah* (Jerusalem, 1958), to Gen. 32:7; R. Isaiah Horowitz, *Shenei Lubot ha-Berit* (Jerusalem, 1963), 3: 48. See the appendix to my book, *Messianism, Zionism and Jewish Religious Radicalism* (Chicago, 1995).

10. Nahum Rabinowitz, “The Approach of Nahmanides and Maimonides to the Commandment of Inheriting the Land” [Heb.], *Tebumin* 5 (1984), 184.

11. See, for example, the comment of Rabbi Yaakov Ariel, *Tebumin* 5 (1984), 174–79.

12. Rav A. I. Kook, *Orot* (Jerusalem, 1976), 14. Cf. the commentary of Rashi on Deut. 1:8.

13. R. Levi Gersonides, *Perush la-Torah*, to Deut. 7:9.

14. Aharon Lichtenstein, “Human Ethics and Divine Ethics” [Heb.], *‘Arakkhim be-Mivvan Milhamah* (Alon Shevut, 1982), 18. Cf. Yaakov Blidstein, *‘Egronot medini’im be-mishnat ha-Rambam* (Ramat Gan, 1983), 216–20.

15. Blidstein, *‘Egronot medini’im*, 220 n. 18. See the remarks of R. David Bonfil (thirteenth century): “It is not just to steal the portion of other nations; God did not give Israel their land save for the fact that it was in the hands of the Canaanites, who did not themselves merit it.” *Hiddushim ‘al Sanhedrin*, ed. Lifschitz (Jerusalem, 1968), to b. Sanh. 91a.

16. Maimonides, *Mishneh Torah*, *Melakhim* 4.10. Compare the above-mentioned papers by Rabinowitz (note 9) and Amital (note 5); also J. Blidstein, “Holy War in Maimonidean Law,” in J. L. Kraemer, ed., *Perspectives on Maimonides* (Oxford, 1991), 209–20.

17. According to one interpretation of Maimonides, he permitted a deterrent war, not a war for expansion alone. See R. Abraham de Boton, *Lehem Mishneh* (printed in standard editions of Maimonides’ *Mishneh Torah*), to *Melakhim* 6.1. Cf. Efraim Inbar, “War in Jewish Tradition,” *Jerusalem Journal of International Relations* 9 (1987), 86–87.

18. *B. Shevuot* 35b.

19. Maharsha (R. Shmuel Edels), *Hiddushei Halakhot va-Aggadot*, ad loc. Cf. Naftali Zevi Berlin’s Torah commentary, *Ha‘amek Davar* (Jerusalem, 1984), to Gen. 9:5; Deut. 20:8.

20. Moshe Sofer, *Hatam Sofer* (Vienna, 1865), 1: 208; cf. Yehudah Shaviv, *Bezir Avi’ezer* (Alon Shevut, 1990), 102; Yosef Ahituv, “The Wars of Israel and the Sanctity of Life” [Heb.], in Y. Gafni and A. Ravitzky, eds., *Qedusbat ha-Hayyim ve-Heruf ha-Nefesh* (Jerusalem, 1992), 263.

21. Yehudah Gershuni, "On Boundaries and on War" [Heb.], *Tebumin* 4 (1983), 59.
22. Amital, "The Wars of Israel According to Maimonides," 460.
23. Shaviv, *Bezir Avi'ezer*, 85 (emphasis added).
24. Rav Shlomo Zevin, *Le-or ha-Halakhah* (Jerusalem, 1978), 10.
25. Shaul Yisraeli, *'Amud ha-Yemini* (Tel-Aviv, 1966), 77. Cf. Ahituv, "The Wars of Israel and the Sanctity of Life," 265.
26. Rav Kook, *Iggerot ha-Re'ayah*, 1: 140. In the halakhic realm as well, Rav Kook understood the permission to shed blood in war as a temporary measure; see *Mishpat Kohen* (Jerusalem, 1966), 153–54. For this reason, all of the opinions presented in this section draw extensively upon him. Rav David Fraenkel, the great nineteenth-century exegete of the Jerusalem Talmud (author of *Qorban ha-'Edah*), linked the permissibility of war to the halakhic requirement that one protect an individual being pursued: if the Torah commanded one to save him from his pursuer, and in the absence of other options even permitted one to inflict mortal harm to the pursuer, how much more so to save an entire nation! See *Sheyarei Qorban* on *7. Sotah* 8:10; cf. Shemaryahu Arieli, *Mishpat ha-Milhamah* (Jerusalem, 1972), 13.
27. *Babylonian Talmud*, *Yoma* 22b.
28. Of course, this distinction is also related to the demonic image of Amalek and the commandment to obliterate him.
29. Yitzhak Aramah, *Aqedat Yizhaq*, nos. 81, 105.
30. A. M. Haberman, ed., *Gezerot Ashkenaz ve-Zorfat* (Jerusalem, 1960), 30, 97.
31. Eleazar ha-Rokeah, *Sefer ha-Rokeah* (Jerusalem, 1960), *Hilkhot 'Eruvin* nos. 196, 85.
32. R. Abraham ibn Ezra, Commentary to Zech 9:9–16.
33. Abraham ibn Daoud, *Divrei Malkhei Bayit Sheni* (Mantua, 1514), 62.
34. Eliezer of Beaugency, Commentary to Haggai 2:7–9.
35. The late historian H. H. Ben-Sasson reveals many interesting facts of this type in "The Singularity of the People of Israel According to Twelfth-Century Scholars" [Heb.], *Peraqim* 2 (Jerusalem, 1969), 166–68, 177, 214–16.
36. The following remarks are based upon my article "Peace in the Jewish Tradition," in A. Cohen and P. Mendes-Flohr, eds., *Contemporary Jewish Religious Thought* (New York, 1987), 691–92.
37. *Targum Onqelos* to Gen. 48:22; *Tanhuma*, *Beshalah*, ch. 9; cf. *Mekhilta de-Rabbi Yishma'el* 14:10; *Babylonian Talmud*, *Baba Batra* 123a.
38. *Babylonian Talmud*, *Hagigga* 14a; *Babylonian Talmud*, *Megilah* 15b.
39. *Midrash Tehillim* 45.4.
40. *Yalqut Shim'oni* 2: 141.
41. *Babylonian Talmud*, *Mo'ed Katan* 16b; Cf. Shlomo Goren, "Heroism in Jewish Teaching" [Heb.], *Mahanayim* 120 (1969), 7–13; Reuven Kimelman, "Non-violence in the Talmud," *Judaism* 17 (1968), 316–34; D. S. Shapiro, "The Jewish Attitude towards Peace and War," in L. Jung, ed., *Israel of Tomorrow* (New York, 1946), 220ff.
42. Goren, "Heroism in Jewish Teaching."
43. See, for example, R. Ya'akov Antoli, *Malmed ha-Talmidim* (Lyck, 1866), fols. 22b, 31b, 85b; Moses Ibn Tibbon, *Perush 'al Shir ha-Shirim* (Lyck, 1874), fol. 14b, etc.

44. See, for example, Joseph Gikatilla, *Sba'arei Orab*, pts. 3–4 (interpretation of the name *zeva'ot*).

45. See G. F. Nuttal, *Christian Pacifism in History* (Oxford, 1958); John Ferguson, *War and Peace in the World Religions* (London, 1977), 101–22 and the extensive bibliography on 122–23.

46. Augustine *De civitate Dei* 19; see also the studies by L. B. Walters, *Five Classical Just-War Theories* (Hartford, CT, 1971), and J. B. Hehir, “The Just-War Ethic and Catholic Theology,” in T. A. Shannon, ed., *War or Peace* (New York, 1980), 15–39.

47. See F. H. Russell, *The Just War in the Middle Ages* (London, 1977), 16–39; cf. Walters, *Five Classical Just-War Theories*, 61–62; Nuttal, *Christian Pacifism in History*, 106 (on parallels in Aquinas).

48. On the revival of the holy war approach among seventeenth- and eighteenth-century Protestants, see Michael Walzer, *The Revolution of the Saints: A Study in the Origins of Radical Politics* (London, 1966), 270ff.; Nuttal, *Christian Pacifism in History*, 115–16; and John Hick, “Christian Doctrine in the Light of Religious Pluralism,” *International Religious Foundation Newsletter* 3 (1988).

49. See *M. Yadayim* 4:4; Maimonides, *Sefer ha-Mizvot*, *Mizvat 'Aseh*, no. 187; cf. Mordecai ha-Kohen, “Peace and the Wars of Israel” [Heb.], *Halakhah va-Halikhhot* (Jerusalem, 1975), 180–203.